BY ORDER OF THE COMMANDER
EGLIN AIR FORCE BASE

EGLIN AIR FORCE BASE INSTRUCTION
31-213

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Security

ARMED FORCES DISCIPLINARY CONTROL BOARDS AND OFF-INSTALLATION LIAISON AND OPERATIONS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements EAFBI 31-213, Applies to all Eglin AFB and Hurlburt Field Military personnel. Send recommended changes or comments for this publication to the Office of Primary Responsibility (OPR) using the Air Force (AF) Form 847, *Recommendation for Change of Publication.* Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This change updates Armed Forces Disciplinary Control Board (AFDCB) areas of responsibility to include Eglin Air Force Base and Hurlburt Field and deletes the term “Northwest Florida Region”, which had included Pensacola Naval Air Station. Additionally, it adds a list of board members, by position, which identifies non-voting and voting members. Finally, the instruction clearly delineates the rotation of presidency for the AFDCB and gives the opportunity to each Installation Commander to work together to come to a final conclusion that protects the health, safety, morale and welfare of Armed Forces personnel and family members in the local area to include Eglin AFB, Hurlburt Field, Duke Field, 7th Special Forces Group compound and Camp Rudder.

1. Authority. The 96 Test Wing (TW) Commander, Eglin AFB, along with the 1 Special Operations Wing (SOW) Commander, Hurlburt Field, are responsible for maintaining the health, safety, morale, welfare and discipline of military personnel and their families on Eglin AFB, Hurlburt Field, Duke Field, 7th Special Forces Group compound, and Camp Rudder. To carry out this responsibility, the 96 TW Commander along with the 1 SOW Commander are authorized under AFI 31-213. *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations* to declare establishments, businesses and areas "off-limits" to military personnel where there exists sufficient cause to believe that service members may be exposed to or victimized by crime-conducive conditions, or forms of discrimination.

2. Purpose. The AFDCB is an organization whose purpose is to assist the 96 TW Commander and 1 SOW Commander in eliminating undesirable conditions and situations that may adversely affect the health, safety, morale and discipline of military personnel and their families. The goal of the AFDCB is the correction of the deficiency by the off-base establishment, business or area. However, when the deficiency is not or cannot be corrected, the AFDCB may recommend to the 96 TW Commander and 1 SOW Commander to place the establishment, business or area "off-limits".

3. Board Composition. The presidency of the AFDCB will be divided and rotated amongst the Commander, 96th Security Forces Squadron, and the Commander, 1st Special Operations Security Forces Squadron. On even calendar years the 1 SOSFS Commander will sponsor and serve as President of the AFDCB for Hurlburt Field and Eglin Air Force Base, Florida. On odd calendar years the 96 SFS Commander will serve and sponsor as President of the AFDCB for Hurlburt Field and Eglin Air Force Base, Florida. Furthermore, whichever installation presides the AFDCB will also be liable for all the responsibilities of the AFDCB as outlined in AFJI 31-213, *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations.*

3.1. Duties of the president include scheduling and presiding at all AFDCB meetings. Whichever installation is presiding the AFDCB should invite and/or coordinate with representatives from the neighbor installation whether it be Eglin AFB, Hurlburt Field, Duke Field, 7th Special Forces Group, or Camp Rudder.

3.2. The following are designated as members of the board

Figure 1. Designated Board Members

Voting Members
96 SFS/CC (Board President/odd years)
1 SOSFS/CC (Board President/even years)
96 TW/CCC
1 SOW/CCC
One representative from 96 SFS (S2 may serve as voting member)
One representative from 1 SOSFS (S2 may serve as voting member)
One representative from 6 RTB/PMO
One representative from 7 SFG/PMO
One representative from NAVSCOLEOD/MA
Non-Voting Permanent Members:
Board Secretary (96 SFS/S2 or 1 SOSFS/S2)
Law Enforcement (AFOSI, CID, Local Agencies)
Board Legal Advisors (96 TW/JA and 1 SOW/JA)
Wing Safety (96 TW/SEG and 1 SOW/SE)
Non-Voting Advisors (as required):
Health, Alcohol and Drug Abuse (96 MDG and 1 SOMDG)
Environmental Protection (96 CEG and 1 SOCES)
Public and Consumer Affairs (96 TW/PA and 1 SOW/PA)
Equal Opportunity (96 TW/EO and 1 SOW/EO)
Fire (96 CES/FD and 1 SOCES)
Chaplains' Service (96 TW/HC and 1 SOW/HC)
Personnel and Community Activities (96 FSS and 1 SOFSS)
AT/FP (96 MSG/CCW and 1 SOW/ATO)
Board visitors or guests not listed above

4. Responsibilities of the Board. The AFDCB functions under the supervision of a president and serves all military personnel and family members at or near Eglin AFB and Hurlburt Field.

4.1. The board meets as often as determined by the sponsoring AFDCB president. The board will convene at least once quarterly or as situations dictate.

4.2. If a situation dictates the board convene immediately, the commanders of the 96 SFS and the 1 SOSFS and their respective legal office representatives will convene in person or via teleconference to discuss the situation and make recommendations. The board's

recommended course of action will be forwarded to each wing commander via a single e-mail from the board president.

4.3. The AFDCB studies and recommends appropriate action on all reports of conditions considered detrimental to the health, safety, welfare, morale and discipline of Armed Forces personnel and families. These activities include, but are not limited to, prostitution, sexually transmitted disease, liquor violations, racial and other discriminatory practices, alcohol and drug abuse, drug abuse paraphernalia, criminal or illegal activities involving cults, hate groups or other groups that conduct or associate with criminal activity, illicit gambling and areas susceptible to terrorist activity.

5. Procedures. Prior to recommending off–limits restriction, the sponsoring AFDCB will send a written notice (certified mail–return receipt requested) to the individual, group or firm responsible for the alleged condition or situation. The AFDCB will specify, in the notice, a reasonable time for the condition or situation to be corrected, along with the opportunity to present any relevant information to the board.

5.1. If the individual, group or firm responsible for the alleged conditions or situation takes remedial action to correct undesirable conditions previously noted, then the AFDCB should send a letter of appreciation to recognize this cooperation.

5.2. If subsequent investigation reveals that the responsible person has failed to take corrective action, the board will make a recommendation to the sponsoring Installation Commanders to begin off-limit proceedings.

5.3. When conditions have not been corrected the proprietor or a (representative) will be invited to appear before the AFDCB and be granted the opportunity to explain why the establishment should not be placed off-limits.

5.4. In these cases where proprietors or their representative have been invited to appear before the board, the president of the board will perform the following:

5.4.1. Prior to calling the proprietor:

5.4.1.1. Review the findings and decision of the previous meeting.

5.4.1.2. Call for inspection reports.

5.4.1.3. Allow those present to ask questions and discuss the case.

5.4.2. When the proprietor or his or her representative is called before the board, the board should:

5.4.2.1. Present the proprietor with a brief summary of the complaint concerning the establishment.

5.4.2.2. Afford the proprietor an opportunity to present matters in defense.

5.4.2.3. Invite those present to question the proprietor. After the questioning period, provide the proprietor an opportunity to make a final statement before being dismissed.

5.5. Deliberations on recommended actions will be in closed session, attended only by board members (without the presence of the proprietor or representative). The voting members

should then vote on whether or not to place the establishment, business, or area "off-limits." The board should recommend an off–limit restriction only after the following:

5.5.1. The letter of notification has been sent.

5.5.2. An opportunity for the proprietor to appear before the board has been extended.

5.5.3. Further investigation indicates that improvements have not been made.

5.6. After deliberation, the minutes will be written by the sponsoring installation and will indicate the AFDCB's recommended courses of action. When a recommendation is made to place an establishment off–limits, the minutes will show the procedural steps followed in reaching the decision.

5.6.1. Minutes will be prepared in accordance with Attachment 1. The written minutes of AFDCB meetings will constitute the official record of the AFDCB proceedings.

5.6.2. Distribution of the minutes of AFDCB meetings should take no longer than 10 business days and will be limited to the following agencies when routing.

Figure 2. AFDCB Routing Agencies

96 TW/CC
1 SOW/CC
96 TW/CV
1 SOW/CV
96 TW/JA
1 SOW/JA
96 SFS/CC
1 SOSFS/CC

5.7. Recommendations of the AFDCB will be jointly submitted to the 96 TW Commander and the 1 SOW Commander who will coordinate with one another to come to a conclusion based on recommendations and evidence given by the AFDCB. The installation commanders will either approve or disapprove the recommendations and forward their decision to the AFDCB president.

5.8. After each commander concurs upon a course of action, the president will inform the proprietor whether the off-limits restriction will or will not be imposed.

5.9. If off-limits restrictions are imposed, then the sponsoring Installation will be responsible for drafting a policy letter for each installation commander to sign and informing the public which local establishments are off-limits.

5.10. A copy of the minutes will be filed with the 96 SFS/S-5 Superintendent and the 1 SOSFS/S-5 Superintendent IAW, AFI 33-332, *Records Management Program.*

6. Removal of Off-Limits Restrictions. No time period should be established for how long an off-limits restriction will remain in effect. The adequacy of the corrective action taken by the

proprietor of the establishment must be the determining factor in removing the off-limits restriction. As a matter of policy, a change of ownership, management, or name of any off-limits establishment does not, in and of itself, revoke the off-limits restriction.

6.1. Removal of an off-limits restriction requires AFDCB action. Proprietors of establishments declared off-limits should be advised that they may submit to the president of the AFDCB at any time a petition to remove off-limits restrictions. The petition must be in writing and include a detailed report of action taken to eliminate the condition or situation that caused imposition of the restriction. The president of the AFDCB may direct an investigation to determine the status of the corrective actions noted in the petition. The board will either recommend the removal or continuation of the off-limits restriction to the 96 TW Commander and 1 SOW Commander based on the results of the investigation. A letter of notification for continuance of the off-limits restriction should be sent to the proprietor if the AFDCB does not remove the off-limits restriction. The proprietor may further appeal to the 96 TW Commander and 1 SOW Commander.

6.2. When the board learns the proprietor has taken adequate corrective measures, the AFDCB will take the following actions:

6.2.1. Discuss the matter at the next meeting and make appropriate recommendations.

6.2.2. Forward a recommendation for the removal of the off-limits restriction to the 96 TW Commander and 1 SOW Commander. If approved, a letter removing the restriction will be sent to the proprietor.

6.2.3. The minutes will reflect action taken.

DAVID A. HARRIS, Brigadier General, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFMAN 33-363, *Management of Records,*11 March 2008

AFI 31-213. *Armed Forces Disciplinary Control Boards and Off-Installation Liaison and Operations,* 27 July 2006

AFI 33-332, *Records Management Program,* 5 June 2013

Forms Adopted

AF Form 847, *Recommendation for Change of Publication*